

**El Paso County  
Delia Briones  
County Clerk**

---

Instrument Number: 00000000114

Sa.Medina

Recorded On: 4/14/2026 11:58:02 AM

Number of Pages: 1

---

**Examined and Charged as Follows:**

**Total Recording: 24.00**

---

\*\*\*\*\*THIS PAGE IS PART OF THE INSTRUMENT\*\*\*\*\*

Any provision herein which restricts the Sale, Rental or use of the described REAL PROPERTY  
because of color or race is invalid and unenforceable under federal law.

**File Information**

Document Number      00000000114  
Receipt Number        1975022  
Recorded Date/Time:   4/14/2026 11:58:02  
                                 AM  
Station:                CCH01-CCK100

---



State of Texas  
COUNTY OF EL PASO

I hereby certify that this instrument was FILED in the File Number sequence on the date/time printed hereon,  
and was duly RECORDED in the Official Record of El Paso County, Texas.

Delia Briones  
County Clerk  
El Paso County, TX

## Notice of [Substitute] Trustee Sale

Assert and protect your rights as a member of the armed forces of the United States. If you are or your spouse is serving on active military duty, including active military duty as a member of the Texas National Guard or the National Guard of another state or as a member of a reserve component of the armed forces of the United States, please send written notice of the active duty military service to the sender of this notice immediately.

### 1. Date, Time and Place of Sale.

**Date:** 07/07/2026

**Time:** The sale will begin at 10:00 AM or not later than three hours after that time

**Place:** El Paso County, Texas at the following location: **AT THE EL PASO COUNTY COLISEUM, 4100 E. PAISANO DR., EL PASO, TX 79905, OR AS DESIGNATED BY THE COUNTY COMMISSIONER'S OFFICE PURSUANT TO SECTION 51.002 OF THE TEXAS PROPERTY CODE AS THE PLACE WHERE FORECLOSURE SALES ARE TO TAKE PLACE OR AS DESIGNATED BY THE COUNTY COMMISSIONERS**

**Property Address:** 473 EMERALD VISTA PL. HORIZON CITY, TX 79928

**2. Terms of Sale:** The sale will be conducted as a public auction to the highest bidder for cash. Pursuant to the deed of trust, the mortgagee has the right to direct the Trustee to sell the property in one or more parcels and/or to sell all or only part of the property. Pursuant to section 51.009 of the Texas Property Code, the property will be sold in AS IS, WHERE IS condition, without any express or implied warranties, except as to the warranties of title, if any, provided for under the deed of trust. Any conveyance of the property is subject to all matters of record affecting the property.

**3. Instrument to be Foreclosed:** The instrument to be foreclosed is the Deed of Trust or Contract Lien dated 10/08/2009 and recorded 10/26/2009 in Document 20090075438, real property records of El Paso County, Texas, with **EDUARDO DE LA CRUZ AND MARY A. DE LA CRUZ, HUSBAND AND WIFE, JOINED PROFORMA** grantor(s) and BIRMINGHAM BANCORP MORTGAGE CORPORATION as Lender, MORTGAGE ELECTRONIC REGISTRATION SYSTEMS, INC. as Beneficiary.

**4. Appointment of Substitute Trustee:** In accordance with Texas Property Code Sec. 51.0076, the undersigned authorized agent for the mortgage servicer has named and appointed, and by these presents does name and appoint AVT Title Services, L.L.C. located at 5177 Richmond Avenue Suite 1230, Houston, TX 77056, Substitute Trustee to act under and by virtue of said Deed of Trust.

**5. Obligation Secured:** Deed of Trust or Contract Lien executed by **EDUARDO DE LA CRUZ AND MARY A. DE LA CRUZ, HUSBAND AND WIFE, JOINED PROFORMA**, securing the payment of the indebtedness in the original principal amount of \$169,801.00, and obligations therein described including but not limited to the promissory note; and all modifications, renewals and extensions of the promissory note. **ONITY MORTGAGE CORPORATION F/K/A PHH MORTGAGE CORPORATION** is the current mortgagee of the note and deed of trust or contract lien.

TS No.: 2026-00463-TX  
24-000294-673

## Notice of [Substitute] Trustee Sale

**6. Default:** A default has occurred in the payment of indebtedness, and the same is now wholly due, and the owner and holder has requested to sell said property to satisfy said indebtedness.

**7. Property to be sold:** The property to be sold is described as follows:

**LOT 11, BLOCK 1, EMERALD PARK UNIT 1 AMENDING PLAT, AN ADDITION TO EL PASO COUNTY, TEXAS, ACCORDING TO THE PLAT THEREOF RECORDED IN VOLUME 79, PAGES 94 AND 94A, PLAT RECORDS OF EL PASO COUNTY, TEXAS.**

**8. Mortgage Servicer Information:** The Mortgage Servicer is authorized to represent the Mortgagee by virtue of a servicing agreement with the Mortgagee. Pursuant to the Servicing Agreement and Texas Property Code § 51.0025, the Mortgage Servicer is authorized to collect the debt and to administer any resulting foreclosure of the lien securing the property referenced above. **Onity Mortgage Corporation F/K/A PHH Mortgage Corporation**, as Mortgage Servicer, is representing the current mortgagee, whose address is:

**C/O Onity Mortgage Corporation F/K/A PHH  
Mortgage Corporation**

**PO BOX 24605  
West Palm Beach, FL 33416-4605**

**Phone: 877-744-2506**

TS No.: 2026-00463-TX  
24-000294-673

### Notice of [Substitute] Trustee Sale

**9. Limitation of Damages:** If the sale is set aside for any reason, the Purchaser at the sale shall be entitled only to a return of the funds paid. The Purchaser shall have no further recourse against the Mortgagor, the Mortgagee, or the Mortgagee's attorney.

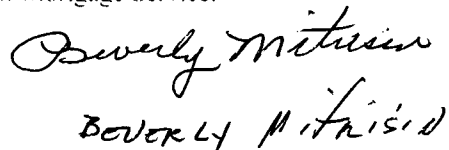
**THIS INSTRUMENT APPOINTS THE SUBSTITUTE TRUSTEE(S) IDENTIFIED TO SELL THE PROPERTY DESCRIBED IN THE SECURITY INSTRUMENT IDENTIFIED IN THIS NOTICE OF SALE. THE PERSON SIGNING THIS NOTICE IS THE ATTORNEY OR AUTHORIZED AGENT OF THE MORTGAGEE OR MORTGAGE SERVICER.**

Date: 04/13/2026



Mark Bombick – Attorney or Authorized Agent of The Mortgagee or Mortgage Servicer

C/O Power Default Services, Inc.  
7730 Market Center Ave. Suite 100  
El Paso, TX 79912  
Telephone: 855-427-2204  
Fax: 866-960-8298

  
BEVERLY MITUSIN

For additional sale information visit: [www.hubzu.com](http://www.hubzu.com) or (855) 882-1314

**POWER DEFAULT SERVICES, INC. MAY BE ACTING AS A DEBT COLLECTOR ATTEMPTING TO COLLECT A DEBT. ANY INFORMATION OBTAINED MAY BE USED FOR THAT PURPOSE.**

#### Certificate of Posting

I am \_\_\_\_\_ whose address is c/o WFL Title Services, L.L.C., 5177 Richmond Avenue, Suite 1230, Houston, TX 77056. I declare under penalty of perjury that on \_\_\_\_\_ I filed this Notice of Foreclosure Sale at the office of the El Paso County Clerk and caused it to be posted at the location directed by the El Paso County Commissioners Court.